

9:00 AM

Line 6

25-CIV-09662 MICHAEL MULATE ARGAW VS. MARK ZUCKERBERG, CEO OF META
PLATFORMS INC., ET AL

MICHAEL MULATE ARGAW	PRO SE
MARK ZUCKERBERG, CEO OF META PLATFORMS INC.	MICHELLE VISSER

Defendants' Demurrer to Complaint

TENTATIVE RULING:

Defendants Mark Zuckerberg's and Meta Platforms, Inc.'s Demurrer to Complaint is ORDERED OFF CALENDAR.

The proof of service of the notice of demurrer and the accompanying papers indicates service was attempted by mail and electronic mail. (Mar. 20, 2026 Proof of Service, p. 2.) As to the latter manner of service, there is no indication that Plaintiff Michael Mulate Argaw has expressly consented to electronic service as an unrepresented party, which is required. (See Code Civ. Proc., § 1010.6, subd. (c) [requiring express consent to e-serve party appearing in propria persona]; Cal. Rules of Court, rule 2.251(b).)

As to the former, the mail was addressed to Argaw at 23940 Summit Ridge Terrace, Germantown, Maryland 20870. While apparently that may be Argaw's address of record in prior or other pending cases, his address of record *in this case* is 12220 Hunter's Chase Drive, Austin, Texas 78729. (Dec. 10, 2025 Complaint, p. 1; see Code Civ. Proc., § 1013, subd. (a) [mail must be addressed to office or residence]; Cal. Rules of Court, rule 2.111(1) [office or address is to be listed on first page of filing].)

Accordingly, there is no indication that notice of the demurrer was properly served, and a "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Therefore, the demurrer is ordered off calendar.

The hearing on the demurrer may be placed back on calendar by Defendants Mark Zuckerberg and Meta Platforms, Inc. by properly serving the demurrer and supporting papers along with filing and serving an amended notice of demurrer. If an amended notice is not filed within ten (10) days of entry of this order, then, at that time, the demurrer will be deemed overruled and Defendants Mark Zuckerberg and Meta Platforms, Inc. will have ten (10) days to answer or otherwise plead to the Complaint pursuant to rule 3.1320(j) of the California Rules of Court.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

10:00 AM

Line 1

23-CLJ-05977 UNIFUND CCR, LLC vs. CAROLINA SILVA-MIRANDA

UNIFUND CCR, LLC
CAROLINA SILVA-MIRANDA

SPENCER PENUELA
ADAM FULLMAN

Plaintiff's Motion for Entry of Judgment

TENTATIVE RULING:

Plaintiff Unifund CCR, LLC's Motion for Entry of Judgment is not opposed and is GRANTED. The Declaration of Plaintiff's Counsel Spencer Penuela filed 7/13/2026 attaches a copy of the relevant Settlement Agreement and Stipulation for Entry of Judgment upon Default (the "Stipulation"), establishing the settlement terms, defendant Carolina Silva-Miranda's uncured default and its counsel's non-response, allowing entry of Judgment. Penuela Decl. ¶¶ 4-6 and Exh. 1. The Stipulation expressly allows for enforcement of its terms under Code of Civil Procedure Section 664.6. Penuela Delc., Exh. 1 – Stipulation ¶ 3.

The Court orders Judgment in favor of Plaintiff and against Defendant for \$11,698.92 in principle, plus \$384.07 in court costs, for a total Judgment of \$12,082.99.

If uncontested, the Court will sign and serve the proposed Order and proposed Judgment submitted with the motion, and waives any other order after hearing.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.
